



CHAPTER lxx.

An Act to extend the limits of supply of the Bexhill Water and Gas Company to authorise the Company to raise additional capital and to construct additional waterworks and for other purposes. A.D. 1904.
[22nd July 1904.]

WHEREAS by the Bexhill Water and Gas Act 1885 (in this Act called "the Act of 1885") the Bexhill Water and Gas Company (in this Act called "the Company") were incorporated for the purposes of making and maintaining waterworks and gas-works and of supplying water and manufacturing and supplying gas within the parish of Bexhill in the county of Sussex and were empowered to raise a share capital of twenty-four thousand pounds and to borrow not exceeding six thousand pounds : 48 & 49 Vict.
c. xcvi.

And whereas by the Bexhill Water and Gas Act 1892 (in this Act called "the Act of 1892") the Company were authorised to raise additional share capital not exceeding ten thousand pounds and to borrow not exceeding two thousand five hundred pounds : 55 & 56 Vict.
c. xcii.

And whereas by the Bexhill Water and Gas Act 1896 (in this Act called "the Act of 1896") the Company were authorised to raise additional share capital not exceeding (inclusive of any premiums received upon the sale thereof) forty-six thousand pounds and to borrow not exceeding eleven thousand five hundred pounds : 59 & 60 Vict.
c. lvii.

And whereas by the Bexhill Water and Gas Order 1901 (in this Act called "the Order of 1901") confirmed by the Gas and Water Orders Confirmation Act 1901 the Company were authorised to raise additional share capital not exceeding (inclusive of any premiums received on the sale thereof) sixty-four thousand pounds and to borrow not exceeding sixteen thousand pounds : 1 Edw. 7.
c. cliv.

And whereas the whole of the share capital authorised by the Acts of 1885 and 1892 has been raised :

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And whereas the capital of forty-six thousand pounds authorised by the Act of 1896 has been raised by the issue of four thousand five hundred and ten shares of ten pounds each :

And whereas of the capital of sixty-four thousand pounds authorised by the Order of 1901 the Company have raised ten thousand one hundred and ninety-one pounds five shillings and ninepence by the issue of one thousand shares of ten pounds each leaving the sum of fifty-three thousand eight hundred and eight pounds fourteen shillings and threepence to be raised :

And whereas the Company have raised the sum of twenty thousand pounds by the issue of debenture stock and have still power to borrow sixteen thousand pounds :

And whereas it is expedient that the Company should be empowered to construct the additional waterworks in this Act described or referred to :

And whereas it is expedient to extend the Company's limits of supply for water and gas :

And whereas it is expedient that the Company be authorised to raise additional capital for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that the further powers should be conferred upon the Company as in this Act provided :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Sussex and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Bexhill Water and Gas Act 1904.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Financial.

Part III.—Extension of limits of supply.

Part IV.—Water.

Part V.—Gas.

Part VI.—Miscellaneous.

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Act divided
into Parts.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

Incorpora-
tion of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except the words “with the consent in writing of the owner or
“reputed owner of any such house or of the agent of
“such owner” in clause 44 of the Waterworks Clauses Act 1847 :

(2) The Lands Clauses Acts :

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands but for the purpose only of constructing the service reservoir Work No. 3 by this Act authorised and in such provisions for the purposes of this Act “the railway” means that reservoir and “the centre of the railway” means with respect to that reservoir the boundaries thereof :

(4) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

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The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the
special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses
Act 1863 as amended by subsequent Acts.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

“The corporation of Bexhill” means the mayor aldermen and burgesses of the borough of Bexhill.

PART II.

FINANCIAL.

Power to
raise addi-
tional capital.

5. The Company may from time to time raise additional capital not exceeding in the whole one hundred and twenty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than sixty thousand pounds.

New shares or
stock to form part
of capital of
Company.

6. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on
new shares
or stock.

7. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description.

8. The Company shall not in any year declare or make out of their profits any larger dividends on the additional capital by this Act authorised than seven pounds in respect of every one hundred pounds actually paid up of such additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of such additional capital as may be issued as preference capital.

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Dividends
limited.

9. In case in any half year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed rate on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends
on different
classes of stock
or shares to be
paid propor-
tionately.

10. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restriction as
to votes in
respect of
preferential
shares or stock.

11. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company.

New shares
or stock to be
offered by
auction or
tender.

12. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase-
money of
capital sold to
be paid within
three months..

13. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk

Notice to be
given as to
sale of shares
or stock.

A.D. 1904. of every borough and to the clerk of the council of every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits.

Disposal of
shares or
stock not sold
by auction or
tender.

14. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Application
of premium
arising on
issue of
shares or
stock.

15. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that the premium received from the sale of stock by auction or tender as hereinbefore provided shall for the purpose of determining the powers of the Company to raise money by borrowing or the amount which the Company may set aside as a reserved fund be reckoned as part of the paid-up capital.

Power to
borrow in
respect of
existing
capital.

16. The Company may at any time and from time to time after the passing of this Act borrow on mortgage of the undertaking in respect of the capital already raised by the issue of shares any sum or sums not exceeding (inclusive of the sum of twenty thousand

pounds already borrowed by them) one-third of the nominal amount of such capital. A.D. 1904.

17. The Company subject to the provisions of this Act may in addition to any moneys which they are authorised to borrow as aforesaid from time to time borrow on mortgage of the undertaking in respect of any unissued capital authorised by the Order of 1901 and of the additional capital by this Act authorised to be created and issued any sum or sums not exceeding in the whole one-third part of the amount which the Company have at the time actually raised by the issue of shares or stock in such unissued and additional capital but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such shares and stock together with the premium (if any) realised on the sale thereof have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Further power to borrow.

18. All provisions in the recited Acts and Order by which the mortgagees of the Company are empowered to enforce payment of principal and interest or principal or interest due on their mortgages by the appointment of a receiver are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision previous to the passing of this Act. Repeal of provisions of recited Acts and Order with respect to appointment of receiver.

19. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than eight thousand pounds in the whole. Appointment of receiver.

20. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 13 of the Act of 1892. Debenture stock

21. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of the recited Acts and Order or under this Act shall have priority against the Priority of mortgages and debenture stock

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over other
debts.

Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the Company's undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Application
of moneys.

22. All moneys raised under this Act whether by shares, debenture stock or borrowing shall be applied only to the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Separate
accounts.

23. The Company shall keep separate accounts of the receipts and expenditure for gas and water purposes respectively on capital and revenue account and they shall apportion fairly between those accounts any expenditure incurred for purposes common to both.

PART III.

EXTENSION OF LIMITS OF SUPPLY.

Extension of
limits of
supply.

24. From and after the passing of this Act the limits of the Company for the supply of water and gas shall extend to and include the parishes of Ninfield Hooe Catsfield Wartling Ashburnham and Hurstmonceux all in the county of Sussex except so much of the said parish of Hurstmonceux as is included within the limits of supply of the Hailsham Water Company as defined by the Hailsham Water Act 1885 and the Company may subject to the provisions herein contained within such parishes exercise all such powers as they are by the recited Acts and Order authorised to exercise in relation to the supply of water and gas within the limits defined by the Act of 1885 but the Company shall not commence to supply water within any portion of such extended limits until they shall have either from the new works authorised by this Act or from any other new source obtained an additional supply of water adequate for the needs of the extended limits.

25. If at any time after the expiration of three years from the commencement of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of supply the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case this Act had not passed.

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Power to
local autho-
rity &c. to
supply water
in case Com-
pany fails to
supply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

PART IV.

WATER.

26. Subject to the provisions of this Act the Company may wholly in the county of Sussex and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the works hereinafter described and shown on the deposited plans and sections and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose.

Power to
make works.

The works hereinbefore referred to and authorised by this Act are—

In the parish of Ninfield—

Work No. 1 A well or wells and pumping station with deposit reservoirs and filter beds to be situate in the field numbered 127 on the $\frac{1}{2500}$ Ordnance map of the said parish (second edition 1899) ;

Work No. 2 A conduit or line or lines of pipes commencing at the said well or wells and pumping station Work No. 1 and terminating in the service reservoir Work No. 3 hereinafter described ;

Work No. 3 A service reservoir to be situate in the field numbered 195 on the said Ordnance map ;

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Work No. 4 A well or wells and pumping station with deposit reservoirs and filter beds to be situate in the southern portion of the wood known as Sweet Willow Wood numbered 419 on the said Ordnance map in the eastern portion of the field numbered 441 on the said Ordnance map and in the field numbered 442 on the said Ordnance map ;

Work No. 5 A conduit or line or lines of pipes commencing at the said well or wells and pumping station Work No. 4 and terminating in the said service reservoir Work No. 3 ;

Work No. 6 A conduit or line or lines of pipes commencing at the said well or wells and pumping station Work No. 4 and terminating in the road leading from Bexhill to Ninfield by a junction with the water mains of the Company at a point adjoining Lunsford House ;

Work No. 7 A conduit or line or lines of pipes commencing in the said road leading from Bexhill to Ninfield by a junction with the said conduit or line or lines of pipes Work No. 5 at a point opposite the western corner of the field numbered 340 on the said Ordnance map and terminating in the said road by a junction with the said conduit or line or lines of pipes Work No. 6 at a point opposite the northern corner of the field numbered 407 on the said Ordnance map ;

Work No. 8 A road commencing at the junction of the said road from Bexhill to Ninfield with the road leading from such road to Pashley Farm and terminating at the northern corner of the said field numbered 442 on the said Ordnance map :

In the borough of Bexhill—

Work No. 9 A well or wells and pumping station to be situate on the field numbered 240 on the $\frac{1}{2500}$ Ordnance map of the said borough (second edition 1899) ;

Work No. 10 A conduit or line or lines of pipes commencing at the said well or wells and pumping station Work No. 9 and terminating in the service reservoir authorised by the Act of 1885 :

Provided that in constructing the said works any well or wells to be hereafter constructed shall be lined or made watertight for a depth of forty feet from the surface of the ground or such depth as may be necessary to exclude the percolation of surface water.

27. The Company in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices byewashes shafts wells bores water-towers overflows waste-water channels gauges filter beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

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Power to
make sub-
sidiary works.

28. In the construction of the works authorised by this Act the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that except for the purpose of crossing over a stream no part of the conduits shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to
deviate.

29. Subject to the provisions of this Act the Company may collect impound take use divert and appropriate for the purposes of their water undertaking all such springs streams and waters as will or may be intercepted by the works by this Act authorised.

Power to
take waters.

30. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Sussex for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Sussex and a duplicate thereof shall also be deposited with the town clerk of the borough or clerk to the council of the parish as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other

Correction of
errors &c. in
deposited
plans and
book of
reference.

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Power to acquire easements only.

31.—(1) The Company may in lieu of acquiring any lands for the purpose of the conduits or other works authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining using cleansing repairing renewing and enlarging the said works and of obtaining access thereto and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Company for the purpose of such works where they are respectively laid underground the Company shall not (unless they give notice to treat for such lands and not merely for easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Company.

(3) Provided also that nothing in this section contained shall authorise the Company to acquire by compulsion any such easements in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Period for compulsory purchase of lands.

32. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

For protection of Earl of Ashburnham.

33. Notwithstanding anything in this Act contained the following provisions shall (unless otherwise agreed in writing) have effect for the protection of the Right Honourable Bertram Earl of Ashburnham and his successors in title and his and their heirs and assigns owner or owners for the time being of Ashburnham Place

in the county of Sussex and the estates for the time being held therewith (all of whom are in this section included in the expression "the owner") :—

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- (1) The Company shall not either by their servants or tenants exercise upon any lands purchased from the owner under the powers hereinbefore contained any right of shooting coursing fowling or sporting over or of taking game woodcocks snipes quails landrails hares rabbits or wildfowl :
- (2) If the Company shall at any time within ten years from the passing of this Act cease to use the said lands for the purposes of their undertaking they shall before disposing of the same or any part thereof to any other person or persons offer to sell the same to the owner as if the same were superfluous lands within the meaning of the Lands Clauses Consolidation Act 1845 at a price to be in case of difference fixed by arbitration without payment or compensation being made to the Company for any building (other than cottages or dwelling-houses) erected by the Company thereon :
- (3) In case the owner shall not within the period fixed by the said Act signify his desire to purchase the lands so offered the Company may dispose of the same free from the restrictions hereinbefore contained.

34. Notwithstanding anything in this Act contained or shown on the deposited plans and sections the following provisions shall (unless otherwise agreed in writing) have effect for the protection of the Right Honourable Baron Brassey of Bulkeley his heirs and successors in estate and assigns for the time being entitled in possession whether for life or any greater interest to the estate of the said Baron Brassey known as the Normanhurst Estate (all of which persons are in this section included in the expression "the owner") :—

For protec-
tion of Baron
Brassey of
Bulkeley.

- (1) Save as in this section provided the Company shall not without the consent of the owner purchase take enter upon or use temporarily or permanently any lands of the owner forming part of the said Normanhurst Estate :
- (2) The Company may acquire and the owner shall grant to the Company such easements or rights in or upon the lands of the owner within the limits of deviation defined upon the deposited plans as shall be necessary for the purposes of constructing and maintaining the road Work No. 8 by this Act authorised and of constructing

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placing laying inspecting maintaining cleansing and repairing any conduit or line or lines of pipes and works incidental thereto by this Act authorised to be made in or through the lands of the owner the Company paying for the grant of such easements and rights the sum of fifty pounds :

(3) If at any time the land of the owner adjacent to the said road Work No. 8 shall be laid out for building purposes and any new road shall be constructed approximately in the line of the said road Work No. 8 the Company shall upon the owner granting to them the like easements in the said new road as shall have been granted under the provisions of subsection (2) hereof surrender to the owner the easements so granted under those provisions and the Company shall at their own cost divert their conduit and any line or lines of pipes constructed or laid in the said road Work No. 8 into such new road :

(4) At any time within five years from the passing of this Act the Company shall be entitled to acquire and the owner shall sell the land shown and coloured pink on the plan signed in triplicate by Harold John Tennant esquire the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited in the Private Bill Office of the House of Commons one copy in the Parliament Office of the House of Lords and one copy with the owner (which plan is in this section referred to as "the signed plan") upon the terms following (namely) :—

(A) The price to be paid by the Company to the owner shall be the sum of six hundred pounds ;

(B) The timber standing on the said land at the time of such purchase is to be reserved to the owner who may and upon request in writing by the Company shall cut and remove the same ;

(C) The Company shall indemnify the owner against any claim in respect of any rights or interests of tenants or occupiers of the said land ;

(D) The exclusive right for the owner and his friends authorised by him of sporting over the said land with access and right of entry are to be reserved and belong to the owner subject as hereinafter provided ;

(E) The Company shall construct and maintain along the southern boundary of the said land between the points marked "A" and "B" on the signed plan and at such other places on the boundaries of the said land as shall be unfenced a proper and sufficient fence ;

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(F) Subject as hereinafter provided the Company shall not erect upon the said land any buildings other than buildings connected with or necessary for the Company's undertaking including a house or houses for the servants of the Company The plans of any such buildings to be subject to the reasonable approval of the owner ;

(G) If the Company shall at any time cease to use the said lands for the purpose of their undertaking they shall before disposing of the same or any part thereof to any other person or persons offer to sell the same to the owner as if the same were superfluous lands within the meaning of the Lands Clauses Consolidation Act 1845 at a price to be in case of difference fixed by arbitration without payment or compensation being made to the Company for any building (other than a cottage cottages or dwelling-houses) erected by the Company thereon In case the owner shall not within the period fixed by the said Act signify his desire to purchase the land so offered the Company may dispose of the same free from the restrictions hereinbefore contained other than the obligation to maintain the said fence.

35. If the works by this Act authorised are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed But nothing herein shall restrict the Company from extending enlarging altering or removing any of their engines machinery tanks pipes or other works from time to time as occasion may require.

Period for
completion of
works.

36. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or

Persons
under dis-
ability may
grant ease-
ments &c.

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privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
agree as to
drainage of
lands &c.

37. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoirs and works by this Act authorised with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such reservoirs and works.

Power to
hold lands
for protec-
tion of water-
works.

38. The Company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

New water-
works to form
part of Com-
pany's under-
taking.

39. The waterworks by this Act authorised shall for all purposes form and be part of the water undertaking of the Company and the provisions of the Act of 1885 shall apply thereto.

Rates pay-
able by own-
ers of small
houses.

40. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Company not
bound to sup-
ply several
houses by one
pipe.

41. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may.

if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. A.D. 1904.

42.—(1) Notwithstanding anything in section 33 of the Act of 1885 contained the Company shall at the request of the owner or occupier of part only of any hereditament entered in the valuation list furnish to such owner or occupier a sufficient supply of water for domestic purposes at rates not exceeding the rates authorised by the said section. Provided that the rateable value upon which the water rate shall be charged shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as in the said section provided the apportionment in case of dispute to be ascertained by a court of summary jurisdiction. Amending
Act of 1885.

(2) Nothing in section 33 of the Act of 1885 shall entitle the Company in any case to demand for the water rate of any house or part of a house included in any division of the scale of rates by that section authorised a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

(3) Notwithstanding anything in section 33 of the Act of 1885 contained the Company may charge in respect of every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit.

(4) Section 35 of the Act of 1885 shall hereafter be read and construed and take effect as though the words "Provided also that the price to be charged for a supply by measure shall not exceed one shilling per one thousand gallons" had been inserted at the end thereof.

(5) Section 45 of the Act of 1885 shall hereafter be read and construed and take effect as though the words "otherwise than by measure" were substituted for the words "otherwise than by agreement."

(6) Sections 34 40 and 44 of the Act of 1885 are hereby repealed.

43. Any person who shall offend against any regulations for the time being in force under the provisions of sections 36 and 37 of the Act of 1885 shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a penalty not exceeding five pounds for each offence and to a further daily penalty not exceeding forty shillings for each day or part of a Penalties
for offences
against regu-
lations.

A.D. 1904. day such offence shall continue after conviction thereof and the Company may in addition thereto recover from such person the amount of any damages sustained by them.

Contracts for
supplying
water in
bulk.

44. The Company may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply of the Company to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would or might interfere with the supply of water for any purposes within such limits. If in the opinion of the corporation of Bexhill any supply of water which is being given by the Company beyond the limits of supply under the powers of this section would or might interfere with the supply of water for any purposes within the limits of supply the corporation of Bexhill may give notice to the Company of such opinion and the question as to whether such supply would or might interfere with the supply of water for any purposes within such limits shall be referred to the arbitration of an engineer to be appointed by the Board of Trade on the application of the corporation of Bexhill or the Company whose decision in the matter shall be final.

For protec-
tion of corpo-
ration of
Bexhill.

45. For the protection of the corporation of Bexhill the following provisions shall have effect (namely):—

(1) Notwithstanding anything contained in the Act of 1885 or any other Act relating to the Company after the expiration of two years from the date of the passing of this Act the water to be supplied by the Company within the borough of Bexhill shall be constantly laid on under the pressure prescribed by section 35 of the Waterworks Clauses Act 1847 :

(2) If the Company cut off the water supply to any inhabited dwelling-house within the borough of Bexhill and cease to supply such dwelling-house with water for non-payment of the water rate or other cause the Company shall in every case within forty-eight hours after exercising such right give notice thereof in writing to the corporation unless the supply shall have been restored within that period. If the Company neglect to comply

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with the foregoing provision they shall unless such neglect occurred owing to a bonâ fide mistake on the part of the Company or their officers or servants be liable to a penalty not exceeding ten shillings which penalty may be prosecuted and recovered by the corporation in a summary manner :

- (3) It shall be lawful for the medical officer of health the borough surveyor or the sanitary inspector for the borough of Bexhill respectively or for any civil engineer duly authorised by the corporation at any time on giving forty-eight hours' notice in writing to the Company to enter and inspect any of the reservoirs filter beds and sources of supply and other waterworks of the Company and to take samples of water after filtration or as discharged into the mains.

46. For protection of the county council of East Sussex and of the rural district councils of Hailsham and Battle the following provisions shall have effect (that is to say) :—

For protection of county council of East Sussex and of rural district councils of Hailsham and Battle.

- (1) All aqueducts conduits or lines of pipes to be laid in or along any main or district road within the rural districts of Hailsham and Battle shall be laid in such position in or at the side thereof as the road authority in writing under the hand of their surveyor may reasonably direct :
- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all roads opened and broken up or interfered with by the Company in the exercise of the powers of this Act provided that the notice required by section 30 of that Act shall be not less than seven days instead of three days :
- (3) The plan required by section 31 of the last-mentioned Act shall whenever required by the road authority be accompanied by a section of the proposed works and shall be delivered to the road authority or their surveyor by the Company not less than fourteen days before they commence to break or open up any main road for the purpose of executing the works :
- (4) Nothing in this Act shall authorise the Company to interfere with the structural part of any public bridge within the said rural districts without the consent in writing of the surveyor of the authority chargeable with

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—

the repair of such bridge which consent shall not be unreasonably withheld and may be given upon such conditions as such bridge authority or their surveyor may reasonably determine. Provided that such bridge authority shall be deemed to have given such consent if within one month after plans showing such interference have been submitted to their surveyor he shall not have given notice to the Company objecting thereto :

- (5) Nothing in this Act contained shall interfere with the right of the road authority to alter the level or deviate or improve in any manner they think fit any main or district road in or along which any aqueduct conduit or line of pipes of the Company shall have been laid and the Company shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the road authority alter the position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter prescribed and the expenses of any such alteration deviation or improvement shall be paid to the Company by the road authority :
- (6) Nothing in this Act contained shall interfere with the right of the county or rural district councils at any time or times to remove alter or rebuild any county or other public bridge or the approaches thereto over near or attached to which any aqueduct conduit or line of pipes of the Company is carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto if this Act had not passed and such aqueduct conduit or line of pipes had not been constructed or laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such aqueduct conduit or line of pipes is laid being removed altered or rebuilt as aforesaid the Company shall at the cost in all things of the Company alter the position of such aqueduct conduit or line of pipes and any works by which such aqueduct conduit or line of pipes is carried over or near or attached to such bridges or the approaches thereto as aforesaid. Provided that during the removal alteration or rebuilding of such bridge as aforesaid the county council or such rural

district council as the case may be shall at the expense of the Company afford all reasonable facilities for temporarily carrying such aqueduct conduit or line of pipes across the stream or river or provide such other means as may be necessary so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit or line of pipes :

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- (7) All works shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road :
- (8) The road authority shall not be liable for or in respect of any damage or injury done to any work of the Company by reason of such work being laid at a depth below the surface of any main road insufficient for its protection from injury arising from the reasonable use of any steam or other roller for the repair of such road or from the passage of the traffic on such road.

PART V.

GAS.

47. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a

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new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Fittings not
to be subject
to distress.

48. Any stove range machinery apparatus article or thing which the Company may let for hire shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such stove range machinery apparatus article or thing have upon it a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas consu-
mers to give
notice to
Company
before re-
moving.

49. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the

next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company. A.D. 1904.

50. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other premises.

51. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of error in defective meters.

52.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers through any other kind of meter or by any other method of supply. Charges for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of one shilling per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the Company's Acts applicable to ordinary meters shall so far as applicable apply to prepayment meters.

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(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Anti-fluctuators for gas engines.

53. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper order the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

No penalty for failure to supply gas in case of unavoidable cause.

54. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Discounts.

55. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition thereto in consideration of large consumption not exceeding in any case fifteen per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the discount or rebate for the time being allowed in consideration of prompt payment shall be endorsed on every demand note for gas rent.

Company may contract with local authority &c. for supply in bulk.

56. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon

such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. A.D. 1904.

PART VI.

MISCELLANEOUS.

57. The Company may on the application of the owner or occupier of any premises within their limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with water and gas and may lay down and from time to time take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Waterworks Clauses Act 1847 and Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

58. The Company may for the purposes of their water or gas undertaking lay down place repair alter remove and renew mains pipes and culverts wires and other apparatus in or under any street or place dedicated to public use within their limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for the purpose of effecting telegraphic or telephonic communication between the Company's works and offices or for any other purpose connected with or ancillary to their business and the provisions of the Waterworks Clauses Act 1847 and the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down placing repairing altering or removing and protection of such mains pipes and culverts wires and other apparatus and works Provided that except with the consent of the corporation of Bexhill no posts wires or tubes shall be erected on or over any street within the borough of Bexhill within a radius of one and a half miles of the town hall and provided that all posts wires and tubes erected or laid by the Company outside the said radius within the said borough under the powers of this section in any street shall be of such pattern and shall be placed in such positions as the corporation of Bexhill shall reasonably direct

Power to lay pipes &c. for purposes ancillary to business of Company.

A.D. 1904. or in the event of the corporation of Bexhill failing to give such directions or of any difference arising between the Company and the corporation of Bexhill as to the reasonableness of any directions given by the corporation of Bexhill then of such pattern and in such positions as an arbitrator to be appointed on the application of either party by the Board of Trade shall specify Provided further that such telegraphic and telephonic communication shall not be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred on the Postmaster-General under the Telegraph Act 1869.

Recovery of penalties &c.

59. All offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Several sums in one summons or warrant.

60. Any summons or warrant issued for any of the purposes of this Act may contain in the body thereof or in a schedule thereto several sums.

Judges and justices not disqualified.

61. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to the payment of any water rent gas rent meter rent rate or charge.

Costs of Act.

62. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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